



Xtenda Finance Limited

Incorporated in the Republic of Zambia (Registration No. 62196)
Mambilima House, Kabelenga Road, Lusaka, Eastern, Arusha



Application Form - Loan Application

Section A - Applicant Personal Details

This Loan Application and Agreement dated the **29** day of **March, 2021** entered into between Xtenda Finance Limited (hereinafter referred to as the 'Lender') of **Mambilima House, Kabelenga Road, Lusaka, Eastern, Arusha** and

Title		Nationality	
Surname		NRC	
First Name		Date of Birth	
Marital Status		Date of Retirement	

Section B - Applicant Contact Details

Telephone No	Home		Work		Cell	
Physical Address						
Postal Address						
Email Address						

Section C - Applicant Employment Details

Employee No		Employer Name	
Department		Employer Contact Name	
MAN No		Employer Contact No	
Occupation		Date of Engagement	

Are you employed on Contract?

If Yes, please state the end of contract date:

Do you intend on taking study leave/maternity leave or any other extended leave which may result in defaulting on the monthly repayments during the term of the loan?

If Yes, please state the period of the intended leave:

Initial

Section D - Applicant Banking Details

Bank Name		Account Name	
Branch Name		Account Number	
Branch Code			

Section E - Applicant Beneficiary Details

Name	Contact Number	Relationship	NRC Number

Section F - Applicant Reference Details

Name	Relationship	Physical Address	Home Tel.No	Mobile No
BELINDA BANDA	Colleague	SENANGA		260977804480
AKALILWA M N	Colleague	SENANGA		260971539600

Section G - Applicant Loan Details

Is this your first loan?	Yes
Loan amount applied for	K 25,252.53
Specify how much you can afford to pay per month?	K 1,344.15
Indicate how many months you will be able to repay the loan?	60 Months

Initial

Key Facts Statement For Consumer Credit

AFFORDABILITY CRITERIA	
Payslip Test	Amount(K)
Basic Salary	
Total Allowances	
Gross Pay	
Total Deductions	
Net pay before loan	
**Minimum Monthly Take Home Pay = 40% of Basic Pay	
Maximum monthly instalment available for new loan	

Summary of Loan Schedule	Amount(K)
Outstanding Loan Amount (If Applicable)	
Total Loan Amount	
Disbursement Amount	
Interest Rate	
Account Maintenance Fee - per month	
Arrangement Fee	
CRB Fee	
Loan Period (months)	
Third Party Amount	
Monthly Installment Repayable	

AMORTIZATION SCHEDULE					
Schedule No	Schedule Due Date	Principal	Interest and Other Fees	Repayment Amount	Remaining Balance
1	28-Apr-2021	145.52	1,198.63	1,344.15	
2	28-May-2021	150.13	1,194.02	1,344.15	
3	28-Jun-2021	154.89	1,189.26	1,344.15	
4	28-Jul-2021	159.79	1,184.36	1,344.15	
5	28-Aug-2021	164.86	1,179.29	1,344.15	
6	28-Sep-2021	170.08	1,174.07	1,344.15	
7	28-Oct-2021	175.47	1,168.68	1,344.15	
8	28-Nov-2021	181.03	1,163.12	1,344.15	
9	28-Dec-2021	186.76	1,157.39	1,344.15	
10	28-Jan-2022	192.68	1,151.47	1,344.15	
11	28-Feb-2022	198.79	1,145.36	1,344.15	
12	28-Mar-2022	205.08	1,139.07	1,344.15	
13	28-Apr-2022	211.58	1,132.57	1,344.15	
14	28-May-2022	218.29	1,125.86	1,344.15	
15	28-Jun-2022	225.20	1,118.95	1,344.15	
16	28-Jul-2022	232.34	1,111.81	1,344.15	
17	28-Aug-2022	239.70	1,104.45	1,344.15	
18	28-Sep-2022	247.29	1,096.86	1,344.15	
19	28-Oct-2022	255.13	1,089.02	1,344.15	
20	28-Nov-2022	263.21	1,080.94	1,344.15	
21	28-Dec-2022	271.55	1,072.60	1,344.15	
22	28-Jan-2023	280.16	1,063.99	1,344.15	
23	28-Feb-2023	289.03	1,055.12	1,344.15	
24	28-Mar-2023	298.19	1,045.96	1,344.15	
25	28-Apr-2023	307.64	1,036.51	1,344.15	
26	28-May-2023	317.38	1,026.77	1,344.15	
27	28-Jun-2023	327.44	1,016.71	1,344.15	
28	28-Jul-2023	337.82	1,006.33	1,344.15	
29	28-Aug-2023	348.52	995.63	1,344.15	
30	28-Sep-2023	359.56	984.59	1,344.15	
31	28-Oct-2023	370.95	973.20	1,344.15	
32	28-Nov-2023	382.71	961.44	1,344.15	
33	28-Dec-2023	394.83	949.32	1,344.15	
34	28-Jan-2024	407.34	936.81	1,344.15	
35	28-Feb-2024	420.25	923.90	1,344.15	
36	28-Mar-2024	433.56	910.59	1,344.15	
37	28-Apr-2024	447.30	896.85	1,344.15	
38	28-May-2024	461.47	882.68	1,344.15	
39	28-Jun-2024	476.09	868.06	1,344.15	
40	28-Jul-2024	491.18	852.97	1,344.15	
41	28-Aug-2024	506.74	837.41	1,344.15	
42	28-Sep-2024	522.80	821.35	1,344.15	
43	28-Oct-2024	539.36	804.79	1,344.15	
44	28-Nov-2024	556.45	787.70	1,344.15	
45	28-Dec-2024	574.08	770.07	1,344.15	
46	28-Jan-2025	592.27	751.88	1,344.15	
47	28-Feb-2025	611.04	733.11	1,344.15	
48	28-Mar-2025	630.40	713.75	1,344.15	
49	28-Apr-2025	650.37	693.78	1,344.15	
50	28-May-2025	670.98	673.17	1,344.15	
51	28-Jun-2025	692.23	651.92	1,344.15	
52	28-Jul-2025	714.17	629.98	1,344.15	
53	28-Aug-2025	736.80	607.35	1,344.15	
54	28-Sep-2025	760.14	584.01	1,344.15	
55	28-Oct-2025	784.22	559.93	1,344.15	
56	28-Nov-2025	809.07	535.08	1,344.15	
57	28-Dec-2025	834.71	509.44	1,344.15	
58	28-Jan-2026	861.15	483.00	1,344.15	
59	28-Feb-2026	888.44	455.71	1,344.15	
60	28-Mar-2026	916.32	427.56	1,343.88	
	TOTAL	25,252.53	55,396.20	80,648.73	

YOUR RIGHTS AND OBLIGATIONS

- Any questions or complaints? Call **+260211 228781**, or email **queries@xtendafin.com** to contact us regarding your question or complaint.
- Unsatisfied with our response to your question or complaint? Contact the Bank of Zambia for help at **+260211 399300** or **info@boz.zm**, write to **Bank of Zambia, Head Office, Bank Square, Cairo Road, Lusaka**, or visit **www.boz.zm**.
- Want to pay off your loan early? You can do so without any penalties or fees. For more information, please call **+260211 228781**.
- You are required to make payments on your loan according to your loan agreement and to notify us of any important changes in your situation.

I, the undersigned declare that the information stated on the Loan Application Form is true and acknowledge that the Lender regards the information as correct in order to consider the application.

Borrower's Full Name:

Signature: _____

Witness Name: _____

Signature: _____

Date: _____

SUPPORTING DOCUMENTATION

National Identity Card	☒		Latest Pay Slips Salary		DDACC Mandate	
Employer Pre Approval Agreement	☐			Latest Bank Statement		Loan Statement
Proof of Residence	☐					

Initiator Name : _____

Signed By: Loan Officer

Branch : #Error

Supervisor Name : _____

Signed By: Supervisor

Branch : #Error

Initial

LOAN AGREEMENT FORM

I do acknowledge that I am truly and lawfully indebted to the Lender in respect of a loan or loans granted to me by the Lender. I hereby authorise my employer to deduct from my salary, or any other source of remuneration by way of a deduction code or otherwise, on salary date each month, or any other date in respect of other remuneration, such sums as the Lender may from time to time notify my employer, which notification shall be either in writing or in such electronic or magnetic media as the Lender and my employer agree from time to time, in repayment of any and all loans granted by the Lender to me together with interest and fees as accrued thereon. I acknowledge and agree that no deduction may be withheld or postponed for whatsoever reason.

Account Name:

Bank Name and Branch:

Bank Account Number:

I hereby authorise the Lender, its holding company, or any of their designated agent, to draw against my account with the above mentioned bank (or any other bank or branch to which I may transfer my account) the amount necessary for payment of the monthly/quarterly/annual commitment due in respect of loan repayment or any future indebtedness I may incur with the Lender. All such withdrawals from my bank account by the Lender shall be treated as though they had been authorised /signed by me personally. Should my account fall in arrears or any periodical instalment be returned by my bank on the basis of insufficient funds in my account, then, I hereby authorise the Lender to increase my monthly instalment to recover the arrears within the contract period or to collect this amount in partial amounts which amounts may be deducted from my account at any time. I agree that the Lender shall be entitled to change the date that deductions are made, to coincide with my payment date and I need not be notified of such. I understand that the withdrawals hereby authorised will be processed by computer through any electronic means and I also understand that details of each withdrawal will be printed on my bank statement or on an accompanying voucher. I agree to pay any bank charges relating to this debit order instruction.

I agree to pay any and all bank charges that relate to this debit order including, without derogating from the generality hereof, all lodgement, failure and other costs that the Lender may incur. I understand that I shall not be entitled to any refund of amounts which you have withdrawn while the authority was in force if such amounts were legally owing to the Lender. Receipt of this instruction by you shall be regarded as receipt thereof by my bank (whichever it is or will be) I hereby authorise the Lender to use the debit order instruction as a stop order when so required. I hereby confirm that I also understand that the Lender may apply set-off in this matter and any other current and future matter where I am indebted to the Lender, including debts ceded to the Lender. This set-off included but is not limited to actions where certain monies in excess of the original amount of the debt have been collected by the Lender but I am not in the position to claim a refund for such monies as I am still indebted to the Lender. Furthermore I agree to let the Lender know when I change / move my account.

SECTION - B Loan Agreement

Whereas:

- 1. The Borrower herein Mr/Ms. has made a Loan application to the Lender.
- 2. The Lender has agreed to lend to the Borrower (K) for a period of months to be repaid in instalments of (K) on terms and conditions herein.

Now therefore these present witness that the parties agree to the following standard terms and conditions for the Loan advancement:

1. Definitions and Interpretations

- 1.1 In this Agreement the following words shall have the meanings assigned to them hereunder:
 - 1.1.1 The Borrower: The borrowing party.
 - 1.1.2 The Capital: The sum of money lent and advanced by the Lender to the Borrower plus any other charges or fees payable by the Borrower as per the policy.
 - 1.1.3 Employer: The current employer of the Borrower, or any subsequent employer of the Borrower.
 - 1.1.4 The Lender: The lending party is Xtenda Finance Limited
 - 1.1.5 Loan or The Loan: The sum of money lent and advanced to the Borrower by the Lender.
 - 1.1.6 Schedule: The schedule detailing the sum of money lent and advanced by the Lender to the Borrower, the insurance premium, the typical number of instalments by which the loan is repayable, the interest rate applicable to the loan, and shall include any schedule subsequently executed (or deemed executed) by the Borrower in respect of the sum of money lent and advanced or deemed advanced by the Lender after execution of this Agreement.
 - 1.1.7 Outstanding Balance: The portion of the Loan, fees, interest and other charges as raised from time to time by the Lender and which is owed by the Borrower to the Lender.
 - 1.1.8 Early Settlement: The full payment of the outstanding amount in fewer instalments than reflected in the Schedule.
 - 1.1.9 Terminal Benefits: The accumulated leave pay, notice pay, severance package and/or salary and pension due to an employee by an employer upon termination of employment.
- 1.2 Headings of clauses shall be deemed to have been included for the purpose of convenience only and shall not affect the interpretation of this Agreement.
- 1.3 Unless inconsistent with the context, words relating to any gender shall include the other gender and words relating to the singular shall include the plural and vice versa.

Initial

Terms of Loan and Repayment

- 2.1 The Borrower acknowledges that he/she has applied for a loan from the Lender in the amount reflected as "Capital" in the Schedule executed or deemed to have been executed by the Borrower.
- 2.2 The Borrower acknowledges that in the event of the Borrower applying for any subsequent loan, such subsequent loan will:
- 2.2.1 Be governed by the terms of this Agreement;
- 2.2.2 Be reflected in a further Schedule, bearing a unique number, which shall be executed by the Borrower.
- 2.3 The Borrower acknowledges that he/she is lawfully indebted unto and in favour of the Lender for repayment of the Capital, as reflected in the Schedule, together with interest and fees as accrued thereon and that the Capital shall be disbursed at the discretion of the Lender either in the form of cash, cheque, or electronic transfer to the Borrower's Bank Account (or any combination of these methods) as reflected in section A of the Agreement, the details of which the Borrower warrants are correct.
- 2.4 The Borrower hereby declares and warrants unto and in favour of the Lender that he/she is gainfully employed.
- 2.5 The Borrower confirms that he is currently actively employed and is at work attending to all his/ her normal duties on the date of signature of this Agreement and that the Borrower has completed a period of at least 6 months of service (or period deemed appropriate by the Lender from time to time) without absence. The Borrower undertakes to repay to the Lender in the manner set forth in the Schedule, the full capital of the monies lent and advanced by the Lender to the Borrower together with interest as accrued thereon together with any and all other charges by irrevocably instructing the Borrower's employer or Pension Fund Administrators to deduct from the Borrower's salary or other remuneration amount reflected in the Schedule as the "monthly instalment payable", or such amount as may be notified by the Lender to the Borrower in writing from time to time.
- 2.5.1 The number of instalments is based on the presumption that payment of the instalments will be made in accordance with the Schedule. The Borrower acknowledges that any delay in the payment of any instalment may result in extra instalments in order to recover the interest and fees due to arrears and the Borrower hereby consents to the recovery of any amount due by way of additional instalments over and above the instalments as indicated on the Loan Schedule generated by the Lender.
- 2.6 The Borrower shall complete any additional documentation including an instruction to the Employer to make deductions from the Borrower's salary ("Salary Deduction Authorisation Form") and do whatever is necessary to formalize this instruction to the satisfaction of the Lender and Employer.
- 2.6.1 The Borrower hereby specifically consents and agrees to be liable for any commission owing by the Lender to the Employer for purposes of facilitating such payroll deductions.
- 2.6.2 The Borrower hereby authorises the Lender to receipt the net payment made by the Borrower's employer to the Lender after deduction of any facilitation fee as contemplated herein.
- 2.7 The Borrower undertakes to notify the Lender in writing immediately should the Borrower's employment with the current employer be terminated for any reason whatsoever and the Lender shall be entitled to demand that the outstanding balance be deducted by the Employer from any payment to be made to the Borrower as a result of such termination.
- 2.7.1 The Borrower irrevocably authorises the employer to pay and discharge on demand all monies and liabilities which are now or at any time hereafter may be due or owing from or incurred by the Borrower to the Lender from the Borrower's terminal benefits held by the Employer in case of separation.
- 2.7.2 The Borrower as beneficiary of the terminal benefits held by the Employer hereby assigns unto the Lender the terminal benefits for the purposes of securing the repayment for the loan granted by the Lender to the Borrower.
- 2.7.3 Until all monies and liabilities due or incurred by the Borrower to the Lender shall have been paid or discharged, the Lender will hold a lien on the Borrower's terminal benefits held by the Employer to the full satisfaction of the loan provided by the Lender to the Borrower.
- 2.7.4 The Borrower irrevocably authorises the Employer to apply the terminal benefits towards the full discharge of the facility provided by the Lender and to pay the Borrower the balance thereof, only upon the full discharge of the monies due to the Lender under the facility.
- 2.8 The Borrower acknowledges that no deduction from his/her salary may be withheld or postponed for any reason whatsoever.
- 2.9 Deductions from the Borrower's salary shall be made on the due date, or any other date in respect of other remuneration, each month commencing from the date reflected in the Schedule until the whole amount payable by the Borrower to the Lender (inclusive of capital, interest and fees) has been repaid to Lender in full.
- 2.10 The Borrower agrees that instalments will be deducted by the Lender or any nominee of the Lender. The Borrower acknowledges that the capital lent and advanced by the Lender shall accrue interest at the rate reflected in the Schedule, or such other rate as may be notified by the Lender to the Borrower in writing from time to time.
- 2.11 The Borrower hereby authorises the Lender to make any arrangements and to sign all documents which the Lender may deem necessary to procure payment of the instalments in terms of this Agreement through any financial or deposit-taking institution with whom the Borrower holds any account. The steps contemplated hereinbefore may include withdrawals from the Borrower's bank account through any electronic method or procedure.
- 2.12 The Borrower authorises the Lender or its duly appointed representative to obtain any information regarding his/her insurance / investments / employee benefits / bank account particulars from any financial institution through which the Borrower is a member of an investment/ employee benefit scheme / bank or deposit taking institution.
- 2.13 In addition to 2.11 above the Borrower hereby irrevocably authorises the Lender to draw against the Borrower's bank account (details of which appear in Section A of this Agreement) or from any other bank or bank account to which the Borrower may transfer his/her account, the sum reflected as the instalment payment due by the Borrower to the Lender for repayment of the loan, and as set out in the Schedule, together with any arrear payments due as well as any accrued interest or interest on arrear payments and fees incurred by the Lender payable by the Borrower to the Lender.
- 2.13.1 The Borrower further confirms that this debit order authority is irrevocable during the term of any loan and shall be a continuing authority in favour of the Lender until any and all liabilities owed by the Borrower to the Lender have been repaid in full.
- 2.13.2 Furthermore, the Borrower undertakes to immediately notify the Lender in writing should the Borrower's bank account details change for any reason whatsoever and shall furnish the new details to the Lender.
- 2.14 Any additional sums of money lent or re-advanced by the Lender shall be reflected in a further Schedule to be executed by the Borrower and which Schedule shall be deemed to form part of this Agreement and shall be subject to all the terms and conditions contained in this Agreement.

Initial

2.15 Notwithstanding any purported allocation by the Borrower of any payments made by the Borrower, the Lender may, at its discretion, allocate such payments to capital, interest, costs, insurance premiums, or any other charges as the Lender in its discretion deems fit.

2.16 The Borrower acknowledges having read and understood that under no circumstance in the process of settling any of the loan instalments or repayments, will cash be paid to any member of staff of the Lender, and that in the event that cash is paid, it will be done so at the Borrower's own risk should it turn out that the cash is not credited to the Borrower's loan account

2.17 The Borrower agrees that any additional payments made against the Borrower's loan account, in addition to those deducted from the Borrower's salary, shall be deposited at the following bank account only and that proof of such payment, in the form of the original bank deposit slip bearing the official bank stamp, will be provided to the Lender within 5 (five) working days of such deposits.

Account Name: **Xtenda Finance Limited**
Account Number: 62299074725
Bank: First National Bank
Branch Name: Commercial Suite

2.18 The Lump sum payments received on an account will be treated as advance payments unless the Borrower has specifically requested a settlement quotation and made payment in accordance with the provisions and notice period as per the settlement quotation.

2.19 The Borrower acknowledges that if any amount is not paid by the Borrower to the Lender on its due date, the full amount of capital, interest and all other amounts then outstanding shall become immediately due and payable by the Borrower to the Lender. The Lender shall be entitled to charge interest at the contractual rate on an overdue payment on the loan. The Borrower hereby authorises the Lender to apply the contractual interest rate on any overdue payment on the loan. Payments received by the Lender over and above the expected payments will be treated as advance payments and will be used to set off any future instalments that are due. Advance payments do not reduce the interest or fees charged.

2.20 The Borrower acknowledges that a certificate signed by or on behalf of the Lender (and it shall not be necessary for the Lender to prove the authority of the person signing such certificate) stating the amount of the Borrower's indebtedness to the Lender (including, if applicable insurance premiums and other charges) and further stating that such amount is due, owing and payable, shall be prima facie proof of all matters contained in such certificate including the amount and validity of such indebtedness and the fact that any amounts contained therein are due, owing and payable by the Borrower and shall entitle the Lender to obtain summary judgment, default judgment or any other proceedings against the Borrower in any competent court and shall be valid as a liquid document for those purposes.

2.21 The Borrower acknowledges that in the event of any instalment, or other payment, not being made on its due date, the Lender shall be entitled (without prejudice to any other rights which the Lender may have) to either demand repayment of the loan (inclusive of capital, interest and other charges then outstanding) or to reschedule the loan repayments, in which event a new Schedule will be deemed to have been executed by the Borrower in favour of the Lender.

2.22 Without detracting from, and without prejudice to, the provisions of clause 2.21 above, the Borrower acknowledges that in the event of his/her loan repayments falling into arrears, the Lender shall be entitled (but not obliged) to cancel the existing loan and reschedule the loan repayments due by the Borrower, in which event:

2.22.1 The balance of the existing loan inclusive of capital, interest and any and all other amounts or charges then owed by the Borrower to the Lender ("the rescheduled capital") will be calculated by the Lender;

2.22.2 The rescheduled capital will be deemed a further loan made by the Lender to the Borrower;

2.22.3 The rescheduled capital together with interest thereon, insurance premiums and other charges, will be repayable by the Borrower to the Lender by way of monthly instalments over a fixed period to be determined by the Lender;

2.22.4 A Schedule in accordance with the terms of this Agreement will be deemed to have been executed by the Borrower; and

2.22.5 The Borrower shall repay the rescheduled capital together with interest, insurance and all other charges in accordance with the provisions of the aforesaid Schedule and the terms hereof.

2.23 Any latitude, extension of time or indulgence which may be allowed by the Lender to the Borrower in respect of the Borrower's obligations in terms of and arising from this Agreement shall not be deemed to be a waiver of, or in any way affect the Lender's rights to require strict and punctual compliance by the Borrower with each and every term and provision of this Agreement, including the Schedule.

2.24 The Borrower acknowledges and agrees that in the event of the Lender, in its sole discretion, deeming it necessary or desirable to instruct its Advocates or other persons to perform legal or collection services to collect any amount owed by the Borrower to the Lender, the Borrower shall be liable for any and all legal costs or charges incurred by the Lender, including any collection commission paid or payable by the Lender, tracing charges or any other incidental costs or charges of whatsoever nature.

2.25 If in the view of the Lender, the Borrower has breached his obligations in terms of the loan payment arrangement, the Borrower authorises the lender to send his payment profile to various credit reference bureaus, and this information will be available to other credit grantors.

2.26 The Borrower waives any claims that the Borrower may have against the Lender in respect of the following disclosures and specifically authorises the Lender to:

2.26.1 Perform a credit search on the Borrower's records with one or more of the registered Credit Bureaus when processing this application;

2.26.2 Monitor the Borrower's payment behaviour by researching the Borrower's records at one or more Credit Bureaus;

2.26.3 Use new information and data obtained from any Credit Bureau in respect of future credit applications;

2.26.4 Record the existence and details of the Borrower's account with any Credit Bureau; and

2.26.5 Record and transmit details of the said account and/or how payments are conducted in meeting the obligations on the account.

2.27 Subject only to the provisions of clauses 2.21 and 2.22 hereof, no agreement to vary, amend, alter or cancel the terms and conditions hereof shall be binding upon either party unless reduced to writing and signed by the Borrower and a duly authorised representative of the Lender.

Initial

2.28 In the event of legal proceedings being commenced by the Lender against the Borrower under this Agreement, the Borrower hereby confirms that he/she will bear the onus of proving that:

2.28.1 monies claimed by the Lender were in fact never advanced to, or received by or on behalf of the Borrower; and

2.28.2 the amount claimed by the Lender has been incorrectly calculated.

2.29 The Lender shall, for the duration of this Agreement, at all times have the right to cede, exchange or otherwise deal with any of rights in terms of this Agreement, upon such terms and conditions as the Lender may deem fit. In such cases the third party will acquire the same rights against the Borrower as the Lender may have by virtue of this Agreement. The Borrower therefore understands and consents that his / her debt towards the Lender may be ceded to a third party, and hereby consents that the Lender may choose to dispose of its rights to this Agreement by any means whatsoever and that it may do so at its sole instance and discretion and that such a party may use his/her personal information for any subsequent purpose that is in line with any combination of the initial purposes for which the personal information was obtained. The Borrower consents to the above use of the above information for as long as it is required by the Lender / third party for the initial or subsequent purposes.

2.30 The Borrower declares that he/she has never been declared bankrupt and acknowledges that in the event:

2.30.1 of he/she committing an act of bankruptcy, of he/she being declared bankrupt;

2.30.2 of he/she committing any breach of his/her obligations under this Agreement;

2.30.3 of the Borrower's employment with the employer being terminated for any reason whatsoever;

2.30.4 that he/she supplies the Lender with any information which is false, incorrect or misleading;

2.30.5 that he/she cancels or attempts to cancel the deduction authorisation referred to in the Agreement;

2.30.6 that the instruction to the employer to pay in terms of the deduction authorisation does not materialise for whatever reason or he/she fails to pay the total monthly instalment to the Lender on the due date;

2.30.7 that any order whether provisional or final be granted by a competent Court placing the Borrower under sequestration or any judgement by any competent court being entered against the Borrower and remaining unsatisfied for thirty days thereafter; and

2.30.8 that any attachment be made or interdict be granted or execution be levied against the Borrower; then the entire capital, interest and any other sums of money due by the Borrower to the Lender shall become immediately due and payable upon demand by the Lender.

2.31 The Borrower hereby chooses domicilium citandi et executandi at the address set out on the face of this Agreement and shall provide written notice to the Lender of not less than 14 (fourteen) days should this address change, provided that the new address chosen shall be an address within the jurisdiction of the High Court for Zambia, and provided further that such address shall comprise both a physical address and postal address.

2.31 All communications between the Lender and the Borrower under this Agreement shall be in writing and delivered by hand or sent by prepaid registered post or sent by fax or e-mail:

2.31.1 In the case of communications to the Lender to its registered place of business or such changed address as may be notified to the Borrower by the Lender.

2.31.2 In the case of the Borrower, at the address set out on the face of this Agreement or such other address as may be notified to the Lender by the Borrower.

2.32 The Borrower acknowledges that any and all notices which may be given to him/her by the Lender in terms of this Agreement (except the service of legal process) shall be deemed to have been properly given and received by the Borrower upon the expiry of a period of:

2.32.1 Fourteen (14) days from the date of posting thereof to the Borrower's postal address by prepaid ordinary registered post;

2.32.2 Three (3) days exclusive of the date of posting if sent by prepaid first class post;

2.32.3 On the day of delivery if hand delivered; and

2.32.4 If sent by fax or email on a business day prior to 5:00 pm, at the time of transmission or otherwise on the next business day.

2.33 The Borrower agrees that this Agreement has been drafted in a language that he understands, alternatively that he is fully aware of the meaning thereof, the same having been explained to him in a language that he understands. The Borrower further confirms that he/she was afforded the opportunity to read this Agreement, or have same read to him/her, before same was concluded.

2.34 The Borrower agrees that this Agreement may be scanned or imaged electronically and the paper version destroyed, and hereby agrees to the scanned or imaged version and waives his/her right to dispute the authenticity of the scanned or imaged version.

2.35 The Borrower consents to the Lender obtaining any information from his/her employer inter alia, without derogating from the generality hereof, details pertaining to the Borrower's salary, employment, residential address and best contact details.

2.36 The Borrower hereby confirms that he/she also understands that the Lender may apply set-off in this matter and any other current and future matter where he/she is indebted to the Lender, including debts ceded to the Lender. This set-off includes, but is not limited to, actions where certain monies in excess of the original amount of the debt have been collected by the Lender, but the Borrower is not in the position to claim a refund for such monies as he/she is still indebted to the Lender in terms of other loan agreements entered into by him/her with either the Lender and / or its subsidiaries and / or its cessionaries.

2.37 Any legal process may be served upon the Borrower at his/her domicilium citandi et executandi/or cessionaries.

2.38 The parties agree that each clause in this Agreement is severable, the one from the other, and if any clause is found to be void, illegal or unenforceable for any reason by any competent court, then the remaining clauses shall be and continue to be of full force and effect.

2.39 No delay or omission on the part of the Lender in exercising any right, power or remedy under this Agreement shall impair such right, power or remedy or be construed as a waiver thereof or of any other right, power or remedy

2.40 The Agreement shall be governed by the laws of the Republic of Zambia and the Borrower hereby consents to the jurisdiction of the courts of the Republic of Zambia.

2.41 The Borrower acknowledges that any and all information contained in the application for the loan completed by or on behalf of the Borrower is deemed material, and constitutes representations by the Borrower forming the basis upon which the Lender has agreed to make the loan to the Borrower.

Initial

2.42 The Borrower consents that the Lender, its affiliates, associates and subsidiaries may send advertising and promotional material by e-mail / SMS (Short Message System) to his/her computer/ cellular telephone as provided herein. This authority by the Borrower may be revoked by written notification sent to the Lender. The Borrower furthermore consents to the Lender sending SMS's to the Borrower with regard to outstanding balance(s), due instalments, arrears and any other matters related to this Agreement, and which authority cannot be revoked.

2.43 The Borrower hereby consents that all personal information relating to him/her, obtained through this application, may be used for the future administration of the Borrower's loan, collection and marketing, including tracing, research , recordable (over and above for the Lender's operations), transmission, distribution, storage, organization, updating modification, disposition, making available in any form, and product design by the Lender.

2.44 The borrower forthwith confirms that the contents of this Loan Agreement was explained to him/ her and the Loan Agreement was completed in all respects upon signature hereof and that this Agreement constitutes the sole record of the Agreement with the Borrower in regard to the subject matter hereof and the Lender shall not be bound by any express or implied term, representation, warranty of the like not recorded herein.

2.45 The Borrower hereby agrees that the Lender may on his/her behalf enter into an insurance contract/ policy and declares that he/she cedes, transfers or assigns to the Lender his/her rights, titles and interest in this contract/policy as collateral security for the loan granted by the Lender.

2.46 The Borrower hereby agrees that should the Employer for any reason, not deduct and / or remit to Xtenda any of the amounts in terms of this agreement, the borrower will pay the amounts due to Xtenda.

I have read, understood and consent to all clauses of the Loan Agreement:

Signed By: _____
by client

Initiator Name :

Signed By : Loan Officer

Witness Name : _____

Branch : #Error

Witness Name : _____

Signature : _____

Signature : _____

Contact Details :

Occupation :

Contact Details :

Occupation :



SCHEDULE

Initial



Xtenda Finance Limited

Incorporated in the Republic of Zambia (Registration No. 62196)
Mambilima House, Kabelenga Road, Lusaka, Eastern, Arusha

APPLICATION FORM - SALARY DEDUCTION AUTHORISATION

Employee		Employer	
Surname		Name of Employer	
Forename		Department	
		Position/Type of Work	

I, the undersigned, request and authorise my Employer named above to deduct from my monthly salary the amounts due and payable by me at any particular time, and pay the amounts so deducted to Xtenda Finance Limited ("Xtenda"). I further understand and undertake that this is an irrevocable instruction and cannot be cancelled by me until all amounts due have been paid to Xtenda. Should my Employer for any reason, not deduct and or remit any of the amounts in terms of this request, I shall consider the amounts unpaid, and if due, I undertake to pay Xtenda such sums. I further understand and undertake that Xtenda will receive all payments in terms of this request without prejudice to its rights, and I shall regard the receipt of this request by Xtenda as receipt of the same by my said Employer.

National Registration Card / Passport	Amount of monthly loan deduction	Xtenda Subscription Fee	First Installment Due Date	Number of Instalments

All payments shall be made to Xtenda free of any deductions at an address or into such bank account, as Xtenda may from time to time direct. I acknowledge and agree that in the event of my loan(s) being rescheduled or my taking of an additional loan, the terms of the Loan Agreement and this Salary Deduction Authorisation Form shall operate in favour of Xtenda in respect of the rescheduled loan and additional loan, together with any amendments, as if the Salary Deduction Authorisation Form had been signed and executed by me in respect of the rescheduled or additional loan.

Signed By:
by client

Signed By:
Initiator Name :
Signed By :
Branch :

Loan Officer
#Error

Witness Name :
Signature:
Contact Details :

Witness Name :
Signature:
Contact Details :

Occupation:

Occupation:

